

17. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: NIST, WILLIAM G
TENTATIVE RULING:

Summary

On April 1, 2026, Plaintiffs and Cross-Defendants William Nist and Mari Nist (herein referred to as "Cross-Defendants") filed a demurrer to the First Amended Cross-Complaint (herein referred to as "FAXC") filed by Defendant Cross-Complainant Shanna Farrell ("Farrell"). The Demurrer challenges the FAXC causes of action for: (1) Negligence and (2) Negligence (Tort of Another).

Farrell did not timely oppose this demurrer. Therefore, Cross-Defendants demurrer to FAXC filed by Farrell is **sustained without leave to amend.**

Analyses

Cross-Defendant's Demurrer to the FAXC filed by Farrell was filed on April 1, 2026. The hearing was originally calendared for September 23, 2026. On June 5, 2026, the Court granted an order shortening time for the hearing of this Demurrer, setting the hearing for July 8, 2026.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine (9) court days before the hearing is June 24, 2026. Farrell did not file a timely opposition. On June 25, 2026, Cross-Defendants' counsel filed a "reply" brief noting that Shanna Farrell did not file and serve a timely opposition to the demurrer.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Ruling

1. The Court **sustains** the Demurrer to the FAXC without leave to amend.
2. The Court will execute the proposed order lodged on April 1, 2026, and will direct the clerk of the court to attach a copy of this tentative ruling.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUESTS FOR ADMISSION ADMITTED AGAINST GWEN BERTOLAMI LYSONS

FILED BY:

TENTATIVE RULING:

This tentative ruling is for Lines 18 and 19. This hearing on these discovery motions was continued from June 3, 2026 to July 9, 2026 to allow counsel to meet and confer to resolve the discovery disputes. Counsel are ordered to appear remotely via Zoom to advise the Court about the status of these discovery disputes.

19. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO GWEN BERTOLAMI LYSONS

FILED BY:

TENTATIVE RULING:

See Line 18, above.

20. 9:01 AM CASE NUMBER: C25-00677

CASE NAME: MARIEL HERNANDEZ VS. FORD MOTOR COMPANY

HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: HERNANDEZ, MARIEL

TENTATIVE RULING:

Summary

Plaintiff Mariel Hernandez's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, is **denied** for failure to comply with mandatory meet-and-confer requirements.

Background

This action arises under the Song-Beverly Consumer Warranty Act. Plaintiff Mariel Hernandez ("Plaintiff") seeks statutory remedies for alleged defects in a 2020 Ford Transit Connect purchased from Defendant Ford Motor Company ("Defendant"). On December 10, 2025, Plaintiff served Requests for Production of Documents, Set One. Defendant responded on January 14, 2026. Plaintiff contends these responses are non-compliant, contain only boilerplate objections, and violate the